

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

February 19, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1 , 2	24CV453156	Javier Leyva et. al. vs General Motors	See Lines 1,2 below for ruling.
9:00 3	25CV470386	Moshe Ancomina vs Diana Romanov, et. al.	See Line 3 below for ruling.
9:00 4	25CV472651	Dee Morgan vs The Terrace of Los Altos Senior Living, et. al.	See Line 4 below for ruling.
9:00 5	24CV441941	Christian Lopez vs Andrew Lan, et. al.	Plaintiff moves this court to Compel Form Interrogatories. Discovery is generally permitted "regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action...if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP section 2017.010) Plaintiff's motion is GRANTED.
9:00 6	24CV441941	Christian Lopez vs Andrew Lan, et. al.	Plaintiff moves this court to Compel Defendant to produce further documents. CCP 2031.010(b) requires production of documents that is in the party's "possession, custody, or control." Defend has produced documents in response to Plaintiff's requests and has specifically indicated that there is no other documentation within the Defendant's possession. Without further evidence that documents are being withheld, Plaintiff's Motion is DENIED.
9:00 7	24CV441941	Christian Lopez vs. Andrew Lan, et. al.	Plaintiff moves this Court to compel further responses to special interrogatories. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information or legal theories developed in anticipation of litigation. (Rafkind 22 Cal.App.4 th 1255, 1261.) Plaintiff's motion is GRANTED.
9:00 8	24CV443183	Shenna Huynh vs Redis Labs	Plaintiff moves court to strike defendant's answer and affirmative defenses. Defendant has violated two court orders with monetary sanctions imposed. Defendant was also warned of possible terminating sanctions for failure to comply. Defendant failed to comply due to a sudden medical emergency. Court is sympathetic to Plaintiff's frustration with Defendant. Court will deny Plaintiff's motion at this time—but will order deadline to produce Mr. John Gebhardt for deposition and will again admonish defendant about the possibility of terminating sanctions should this order not be complied with.
9:00 9	24CV443183	Shenna Huynh vs. Redis Labs	Plaintiff moves this court to compel production of documents. Court agrees with Defendant that RFP 11-13, 19, RFP20, 27, 30, and 31 requesting "all communications" is overbroad. Court does find that RFP24,25,36,37,58,70,and 72 are relevant. Court finds that RFP 47-48 are premature requests. Court finds that RFP 74-78 regarding sales performance as relevant.
9:00 10	24CV447415	Houman Hayatgheyb v. Stanford Health Care	Court had previously ordered for documents to be produced from Mr. Entwistle ad had continued the case for thirty days to produce documents. Case was set for discovery update.
9:00 11	23CV422621	Michael Hertz v. Mark Olivarez	Plaintiff moves this court to order and accounting from a partition referee. Defendant has resolved partition by exercising buy out procedure. Plaintiff's motion is DENIED.

Court 9:00 12	24CV432080	Serenity vs. Palo Alto Mind Body	Defendant moves this Court to reconsider order denying defendant's motion to dismiss defendant without prejudice and to maintain proceedings. Defendant does not offer any new set of facts as required by CCP 1008. Defendant's motion is DENIED.
9:00 13	25CV462289	James Cuevas vs FCA	Motion withdrawn.
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Line 1,2

Defendant, General Motors LLC's ("GM") demurrer to the fifth cause of action in Plaintiffs' first amended complaint ("FAC") and motion to strike punitive damages came on for hearing before the Court on January 15, 2026. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on January 14, 2026.

I. Alleged Facts

On August 7, 2015, Plaintiffs entered a warranty contract with GM for a 2015 GMC Sierra 1500, vehicle identification number 3GTU2VEC1FG291754 ("Subject Vehicle"), which was manufactured and/or distributed by GM and sold by Capitol GMC in San Jose, California. The contract warranted the Subject Vehicle "bumper-to-bumper", including but not limited to powertrain, emission, etc. (FAC ¶ 6) Prior to Plaintiffs purchasing the Subject Vehicle, GM knew that vehicles equipped with the same 6-speed transmission, as installed in the Subject Vehicle, suffered from one or more defects that could cause hesitation or delayed acceleration, harsh or hard shifting, jerking, shuddering, surging, acceleration, deceleration, or symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"). ("Transmission Defect") GM acquired this knowledge through various sources of information, including but not limited to pre-production testing, pre-production design failure mode and analysis data, production failure mode and analysis data, early consumer complaints made exclusively to GM and its network of dealers, aggregate warranty data compiled from GM's network of dealers, testing conducted by GM in response to consumer complaints, and repair order and parts data received by GM from its network of dealers. (FAC ¶¶ 59-60)

GM and its directors, officers, employees, affiliates, and/or agents concealed the Transmission Defects from public and Plaintiffs. Had Plaintiffs known the Subject Vehicle and its transmission were defective

at the time of sale, they would not have purchased it. (FAC ¶ 62)

Plaintiffs initiated this action on December 3, 2024, and amended their complaint on August 21, 2025, alleging causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d); (2) Violation of Civil Code section 1793.2, subdivision (b); (3) Violation of Civil Code section 1793.2, subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.

II. Legal Standards

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (Code Civ. Proc., 430.10, subds. (e) (f).) A demurrer may be utilized by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)

The court treats demurrer "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

"Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the

legal effect of the pleading. (*Id.*)

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...." (Code Civ. Proc. § 435.) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc. § 436.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc. § 437, subd. (a).)

III. Analysis

A. Demurrer to the FAC's Fifth Cause of Action – Fraudulent Concealment

The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.)

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff's fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (*i.e.*, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (*i.e.* partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (*i.e.*, active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, ..., or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to

disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 40, internal citations and quotes are omitted.)

GM contends Plaintiffs fail to allege a viable claim for fraudulent concealment because the claim (1) is barred by the applicable three-year statute of limitation, (2) fails to allege a transactional relationship that would give rise to a duty to disclose, and (3) fails to state facts with the requisite specificity. Citing *Antonov v. General Motors LLC* (C.D. Cal. Jan. 19, 2024) No. 8:23-cv-01593- FWS-MJR, 2024 WL 217825¹, GM emphasizes lack of any transactional relationship with Plaintiffs since it did not directly sell the Subject Vehicle to them, and dealerships are not agents of automobile manufacturers. As such, it did not have any duty of disclosure to Plaintiffs as a matter of law.

1. Statute of Limitation

Claims for fraudulent inducement based on concealment are subject to a three-year statute of limitations. (Code Civ. Proc., § 338(d).) A general demurrer based on the statute of limitations is only permissible when the grounds for the defense are disclosed on the face of the complaint or from matters judicially noticed. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746; *Iverson, Yoakum, Papiano & Hatch v. Berwald* (1999) 76 Cal.App.4th 990, 995.) In other words, the dates alleged in the complaint must show the action is barred by the applicable statute of limitations and the running of the statute must appear clearly and affirmatively from the alleged dates. If not, the proper remedy is to ascertain the factual basis of the contention through discovery and, if necessary, file a motion for summary judgment. (See, *Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324-325.)

GM, referring to paragraph 6 of the FAC, incorrectly contends Plaintiffs claim accrued on November 3, 2018, when the Subject Vehicle was purchased and the express warranty went into effect. Therefore the latest filing date for the complaint was November 3, 2021. (Demurrer 8:13-17)

¹ A decision of a federal district court has no precedential value in this court; at best, it is persuasive authority only. (*Castaneda v. Department of Corrections & Rehabilitation*, (2013) 212 Cal. App. 4th 1051, 1075)

However, paragraph 6 of the FAC alleges the Subject Vehicle was purchased on August 7, 2015, and based on GM's calculation method the deadline arguably would have been August 7, 2018.

Nonetheless, a fraud claim "is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd.(d).) Plaintiffs allege they discovered GM's wrongful conduct shortly before the filing of their original complaint, as the Subject Vehicle continued to exhibit symptoms of engine defects following GM's unsuccessful attempts to repair them. (FAC ¶ 35) Nothing in the FAC specifies or shows when Plaintiffs discovered the alleged fraud. A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) Consequently, GM's demurrer is OVERRULED on this ground.

2. Transactional Relationship

"A relationship between the parties is present if there is some sort of transaction between the parties." (*Hoffman v. 162 N. Wolfe LLC*, (2014) 228 Cal. App. 4th 1178, 1187, internal citation and quotes omitted) Plaintiffs allege they entered into an express warranty agreement with GM on August 7, 2015. The Court is obligated to construe all inferences in the FAC in the light most favorable to Plaintiffs. As such, Plaintiffs have sufficiently alleged a transactional relationship with GM that gives rise to a duty to disclose. Plaintiffs have also alleged sufficient facts showing GM's exclusive knowledge of the Transmission Defect, which were not reasonably discoverable by Plaintiffs. Consequently, GM's argument for lack of duty to disclose fails on either basis and its demurrer is OVERRULED on this ground.

3. Specificity

The requirement of specificity is relaxed when the allegations indicate that "the defendant must necessarily possess full information concerning the facts of the controversy" or "when the facts lie more in the knowledge of the opposite party[.]" (*Tarmann v. State Farm Mut. Auto. Ins. Co.*, (1991) 2 Cal. App. 4th 153, 158, internal citation omitted)

Still, Plaintiffs' claim for concealment is insufficiently pled. Plaintiffs fail to allege facts showing (1) specific affirmative or intentional acts GM took in hiding or concealing the Transmission Defects, (2) where the omitted information should or could have been revealed, and (3) GM's intent to defraud

Plaintiffs. Even under the more relaxed pleading standard that applies to omission-based fraud claims (*Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384.), conclusory allegations that GM concealed transmission safety defects (FAC ¶15) are insufficient to defeat demurrer.

Accordingly, GM's demurrer to Plaintiff's fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.

B. Motion to Strike Punitive Damages

GM contends punitive damages are not recoverable under Plaintiffs' first four causes of action for violation of the Song-Beverly Consumer Warranty Act (Civ. Code § 1790, et seq. ("The Act")) GM adds that Plaintiffs' prayer for punitive damages in relation to their claim for fraudulent concealment must also be stricken because the claim is not only time-barred, but also fails to state facts showing it acted with malice, oppression, and fraud. GM incorporates its demurrer arguments in support.

As analyzed in the previous section, nothing in the FAC specifies or shows when Plaintiffs discovered the alleged fraud. As such, neither a demurrer nor a motion to strike portions of the complaint lie when the grounds for statutory bar are not disclosed on the face of the FAC. Therefore, GM's motion on this ground is DENIED.

Moreover, damages under the Song Beverly Act include a refund of the purchase price or replacement of the vehicle and, under certain circumstances, a civil penalty not to exceed two times Plaintiff's actual damages. (Civ. Code, sec. 1794.) Civil penalties are awarded if the trier of fact finds Defendant willfully violated its obligations. (Civ. Code, sec. 1794(c).) The California Courts of Appeal have opined that punitive damages are not available under the Song-Beverly Act because they are akin to civil penalties that are otherwise available under the Song-Beverly Act. (*Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 184-185; *Troensegaard v. Silvercrest Industries, Inc.* (1985) 175 Cal.App.3d 218, 228.)

Plaintiffs assert punitive damages can be pled under the Song Beverly Act, citing *Brilliant v. Tiffin Motor Homes, Inc.* (N.D. Cal. July 7, 2010) 2010 WL 2721531, *Clark v. LG Elecs. U.S.A., Inc.* (S.D. Cal. Oct. 29, 2013) 2013 WL 5816410, *Romo v. FFG Ins. Co.* (C.D. Cal. 2005) 397 F.Supp. 2d 1237, and *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253. Although the federal cases may have determined otherwise, this Court is unaware of any California case law that allows punitive damages under the

Song Beverly Act.

As for *Clauson*, the Court found the plaintiff could plead punitive damages under the common law tort claim of invasion of privacy and simultaneously plead civil penalties under the statutory claim for unlawful wiretapping pursuant to Penal Code section 637.2, subdivision (a). The Court of Appeal did not find punitive damages could be pled under the statutory claim for unlawful wiretapping.

Therefore, the Court is unpersuaded that punitive damages can be brought simultaneously with Plaintiffs' causes of action under the Song Beverly Act. In the event Plaintiffs' cause of action for fraudulent concealment is successfully pled in the future, they may bring a claim for punitive damages under that cause of action, but not under the Song Beverly Act.

Accordingly, GM's motion to strike punitive damages is GRANTED WITHOUT LEAVE TO AMEND as to the first through the fourth causes of action, and WITH LEAVE TO AMEND as to fifth cause of action.

LINE 3

MOSHE DAN ANCONINA, an individual,

Plaintiff,

v.

DIANA ROMANOV, formerly known as DIANA
ROMANOVSKA, individually and ROMANOV LAW,

Defendants.

Case No. 25CV470386

**ORDER GRANTING PLAINTIFF'S MOTION TO
STRIKE DEFENDANTS' ANSWER WITH LEAVE
TO AMEND & DENYING REQUEST FOR SANCTIONS**

Plaintiff's motion to strike Defendants' answer and affirmative defenses came on for hearing before the Court on February 19, 2026. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling on February 18, 2026.

I. Alleged Facts

From August 2022 through July 2024, Defendant Diana Romanov represented Plaintiff in a family law matter before the Santa Clara County Superior Court. During this time, Plaintiff paid Ms.

Romanov approximately \$140,000.00 in legal fees. Facing financial difficulties, Plaintiff could not pay the additional \$35,000.00 trial retainer that was requested.

On July 24, 2024, approximately two and half months before trial, Ms. Romanov filed a substitution of attorney. Plaintiff was then forced to retain a lower-cost substitute attorney, who had no trial experience and inadequate time to prepare for the trial. Subsequently, the family court issued a three-year restraining order against Plaintiff resulting in substantial loss of his parental rights.

Ms. Romanov failed to renew a previously issued Domestic Violence Restraining Order that protected Plaintiff, object to a defective child support order, challenge unlawful service by the Department of Child Support Services, and assert available defenses. These omissions resulted in suspension of Plaintiff's contractor license, a \$500.00 bank levy, and reputation of an "absent parent."

Plaintiff initiated this action on July 11, 2025, alleging causes of action for (1) legal malpractice, (2) breach of fiduciary duty, (3) intentional infliction of emotional distress, and (4) constructive fraud.

II. Legal Standards

Pursuant to Code of Civil Procedure, § 436, "the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." The grounds for a motion to strike must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 529 [recognizing that an objection that the complaint failed to state facts sufficient to constitute a cause of action is ground for a general demurrer, not a motion to strike].) Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc., § 435, subd. (b)(1).) The allegations of a complaint "must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "read[s] allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume[s] their truth." (*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

III. Analysis

A motion to strike an answer must be filed within 10 days after service of the answer (Code. Civ. Proc. § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b); Code Civ. Proc., § 430.40, subd. (b) [“A party who has filed a complaint ... may, within 10 days after service of the answer to his pleading, demur to the answer.”].)

Defendants’ answer was served on September 5, 2025, but mistakeably was not submitted to the court until September 23, 2025. Without requesting an extension of time, Plaintiff filed his original motion to strike the answer on October 30, 2025. Once the motion was rejected for failure to reserve a hearing date, Plaintiff refiled her motion on November 10, 2025. Plaintiff’s deadline to file his motion was, at the latest, 10 days from September 23, 2025, i.e. October 3, 2025. Even considering Plaintiff’s original filing date, the motion is still too late. Nonetheless, the Court at its discretion addresses the merits of the motion since Defendants have not objected to its untimely filing and instead have addressed Plaintiff’s substantive arguments in their timely opposition.

Plaintiff contends Defendants’ answer should be stricken because (1) it was filed five days late and while Plaintiff’s request for default was under review, (2) its affirmative defenses are boilerplate and fail to state facts constituting the defense, (3) it fails to specifically deny each allegations of the verified complaint, and (4) its tardy filing delayed resolution, increased costs and deprived Plaintiff of his statutory right to have a default entered pursuant to Code. Civ. Proc. § 585. Plaintiff adds that Defendants have been aware of this lawsuit since July of 2025 and their untimely and bad faith answers warrants sanctions under Code. Civ. Proc. §§ 128.5, and 128.7.

In opposition, Defendants contend (1) there is no definitive deadline for filing their answer due to the improper service of process, (2) their answer was filed five days after Plaintiff’s purported deadline due to the error of the contracted filing vendor, (3) specific denial of the allegations was not required since, in violation of California Rules of Court, rule 2.111, the first page of the complaint fails to identify it is verified and whether it is of limited or unlimited jurisdiction, (4) the allegations of the complaint are too unspecific and disorganized to allow specific denial, (5) their affirmative defenses need not be accompanied by specific facts since discovery has not been performed, and (6) mistake and neglect of the filing vendor is not equivalent to a sanctionable frivolous conduct committed by

Defendants intending to cause delay.

First, irrespective of irregularities in the service of process, Defendants' answer constitutes a general appearance. Nonetheless, the irregularities and/or improper service of process can undermine Plaintiff's position that the definitive deadline to file answers was September 18, 2025. "Even if the time to answer had expired, a trial court has discretion to decide whether to strike a late-filed answer." (*Imagistics Internat., Inc. v. Dep't of Gen. Servs.* (2007) 150 Cal.App.4th 581, 588.)

Defendants provide declaration of Alexis McNichols, First Legal's eFiling manager, attesting that Defendants' answer was received on September 4, 2025, for same day filing. On September 8, 2025, First Legal incorrectly informed Defendants' attorney that the filing was pending the court's review even though the answer was not submitted to the court until September 23, 2025, due to an inadvertent error of her eFiling Specialist.

Defendants also submit declaration of their attorney, David McMonigle, attesting that on September 5, 2025, Plaintiff was mail-served with a copy of their answer after he failed to address Defendants' concerns about service of process and their proposal to effectuate service by executing a notice of acknowledgement.

Considering the submitted declarations, Defendants' active participation in the action, and lack of prejudice shown by Plaintiff, the Court finds the purported late filing of the answer excusable. (See, *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.)

Second, Defendants' alleged failure to state facts sufficient to constitute a defense is a ground for demurrer and not a motion to strike their answer. However, their failure to file a verified answer to a verified complaint is subject to a motion to strike. (Code Civ. Proc. § 430.20.) Additionally, in response to a verified complaint, a defendant must also specifically deny the allegations. (Code Civ. Proc., § 431.30, subd. (d).) Here, Defendants' answer is not only unverified but also fails to specifically deny Plaintiff's allegations. Defendants' explanations and justifications for their non-conforming answer are unpersuasive.

California Rules of Court, rule 2.111 states, in pertinent parts:

"(6) Below the number of the case, the nature of the paper and, on all complaints and petitions, the

character of the action or proceeding. In a case having multiple parties, any answer, response, or opposition must specifically identify the complaining, propounding, or moving party and the complaint, motion, or other matter being answered or opposed...

(9) On the complaint, petition, or application filed in a limited civil case, below the character of the action or proceeding, the amount demanded in the complaint, petition, or application, stated as follows: "Amount demanded exceeds \$10,000" or "Amount demanded does not exceed \$10,000," as required by Government Code section 70613.

(10) In the caption of every pleading and every other paper filed in a limited civil case, the words "Limited Civil Case," as required by Code of Civil Procedure section 422.30 (b)."

(California Rules of Court, rule 2.111(6), (9), (10).)

Moreover, Code. Civ. Proc. § 422.30, subdivision (b) provides: "In a limited civil case, the caption shall state that the case is a limited civil case, and the clerk shall classify the case accordingly." The Code and the Rules of Court require parties to explicitly indicate that a case is limited jurisdiction. As a practical matter, this means that a civil case is classified as unlimited by default since extra requirements must be satisfied to render a case limited.

Regardless of the omitted first-page designations, a full review of the complaint establishes it is verified and unlimited jurisdiction since Plaintiff attaches his verification and prays for general damages in an amount not less than \$1,250,000.00. As such, Defendants were required to file a verified answer specifically denying Plaintiff's allegations. Paragraphs 2-17 of the complaint provide a list of Defendants' alleged wrongdoings that form the basis of Plaintiff's claims. These allegations are definite enough to allow Defendants' to specifically deny their wrongdoings and/or the claims.

Third, while the Court finds that Defendants' unverified answer is subject to strike, it does not find their conduct is subject to sanctions, contrary to Plaintiff's argument. Code of Civil Procedure permits the court to sanction attorneys or parties for engaging in bad faith actions or tactics or for filing documents with the court for an improper purpose. (See Code Civ. Proc, §§ 128.5 and 128.7.) The decision as to whether sanctions should be imposed under section 128.5 or 128.7 is within the court's discretion. (*Brubaker v. Strum* (2023) 87 Cal.App.5th 497, 511 [under section 128.5]; *Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1120-1121 [under section 128.7].) As a prerequisite to the imposition

of sanctions under §128.5 or §128.7, the moving party must comply with a 21-day safe harbor. This requires service of a copy of the motion 21 days before it is filed, to afford the opposing party the opportunity to correct the issue. (Code Civ. Proc, §§ 128.5, subd. (f)(1)(B); 128.7, subd. (c)(1).) The safe harbor notice provisions must be strictly complied with. (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.) Here, not only did Plaintiff not comply with the safe harbor provisions, but also the circumstances leading to the alleged late filing of the answer do not tantamount to bad faith conduct.

Finally, Plaintiff attributes certain quotes to published cases that do not appear in those cases and some of the cases he cites do not discuss the topics for which they are cited. “[N]o brief, pleading, motion, or any other paper filed in any court should contain any citations—whether provided by generative AI or any other source—that the attorney responsible for submitting the pleading has not personally read and verified.” (*Noland v. Land of the Free, L.P.* 114 Cal.App.5th 426, 431.) The Court notes Plaintiff is self-represented. Nonetheless, self-represented litigants are held to the same standards and considerations as attorneys and other litigants. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444; *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) The Court admonishes Plaintiff and cautions him that any future reference to and/or use of fake legal authority will subject him to monetary sanctions.

The Court finds it unnecessary to further analyze and address the parties’ remaining arguments. Based on the foregoing, Plaintiff’s motion to strike Defendants’ answer is GRANTED WITH LEAVE TO AMEND but his request for sanctions is DENIED.

LINE 4

Calendar Line 4

Case Name: *Dee Morgan v. The Terraces of Los Altos Senior Living, et al.*

Case No.: 25CV472651

Before the Court is Plaintiff Dee Morgan’s (“Plaintiff”) motion to strike portions of the Answer to the

Complaint filed by defendant The Terraces of Los Altos Senior Living (“Defendant”). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND

A. Factual

This action arises out of an alleged breach of contract. According to the allegations of the operative Complaint filed by Plaintiff, on April 28, 2025, she and the defendants entered into a written agreement pursuant to which she provided petting zoo services at their facility. Plaintiff fully performed under the agreement, but the defendants failed to remit the agreed-upon payment to her, resulting in this action.

B. Procedural

Based on the foregoing, Plaintiff initiated this action with the filing of the Complaint on August 14, 2025, asserting claims for: (1) breach of contract; (2) professional negligence; (3) intentional infliction of emotional distress; and (4) unlawful business practices.

On September 29, 2025, Plaintiff filed the instant motion to strike Defendant’s affirmative defenses in the Answer; the hearing on the motion was set for December 4, 2025. No opposition was filed. On December 3, 2025, the Court posted a tentative order denying Plaintiff’s motion on the ground that the notice of motion was not properly served. At the hearing the following day, Plaintiff appeared but Defendant did not. Plaintiff, who is self-represented, had not seen the tentative ruling, and the Court explained the tentative ruling process and that its tentative ruling was to deny the motion due to a lack of proof of service that Plaintiff had served her motion to strike. Plaintiff informed the Court that she did serve the defendants and filed a proof of service demonstrating as much on December 1, 2025. The Court was able to locate this proof of service and therefore continued

the motion so that the Court could further consider the merits.

At the continued hearing on January 6, 2026, Defendant claimed that it had never been served with the motion to strike and alleged that Plaintiff's proof of service filed with the Court was false. Plaintiff denied Defendant's allegation. Defendant requested a continuance to substantively respond to Plaintiff's motion to strike, which the Court granted. The Court also ordered Plaintiff to file and serve a declaration regarding the disputed service by January 16, 2026. On January 16, 2026, Defendant filed its opposition to Plaintiff's motion.

II. PLAINTIFF'S MOTION TO STRIKE

A. Legal Standard

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).)

Irrelevant matter includes "immaterial allegations." (Code Civ. Proc., § 431.10, subd. (c).) "An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense; (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense; (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Code Civ. Proc., § 431.10, subd. (b).)

"As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice." (Edmon & Karnow, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2024) ¶ 7:168, p. 7(l)-79 citing Code Civ.

Proc., § 437.) “Thus, for example, defendant cannot base a motion to strike the complaint on affidavits or declarations containing extrinsic evidence showing that the allegations are ‘false’ or ‘sham.’ Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable.” (Id. at ¶ 7:169, p. 7(l)-79.)

“In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to the motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Super. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) “In ruling on a motion to strike, courts do not read allegations in isolation.” (*Ibid.*)

B. Discussion

Plaintiff moves to strike certain affirmative defenses in Defendant’s answer for various reasons. First, she moves to strike the defenses of failure to state a claim, waiver, estoppel, unclean hands and laches based on the allegations of those defenses being boiler plate and conclusory and lacking any supporting facts. Next, she argues that defenses such as “failure to state a cause of action” and “reservation of rights” are not proper defenses.

As this Court previously explained in its December 5, 2025 order continuing Plaintiff’s motion to strike, such a motion is generally *not* the proper vehicle to challenge an answer for failure to state sufficient facts to constitute a defense; rather, a demurrer is. (See Code Civ. Proc., §§ 430.20 and 430.30.) While Plaintiff is self-represented, such individuals are not entitled to special treatment regarding the Rules of Court or Code of Civil Procedure. (See *Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303 [“we cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona.”].) Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; see also *County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.)

Despite the foregoing, this Court also noted in the December 5th order that Plaintiff's motion appeared to raise "valid points regarding the insufficient support plead to support Defendant's affirmative defenses" and that it was "permitted to disregard form to focus on substance when a motion may be incorrectly named but the relief sought is otherwise clear." (Court's December 5th Order at 4, citing *Hudson v. Superior Court* (2017) 7 Cal.App.5th 999, 1011 [The law respects "form less than substance," and consequently, a trial court may disregard the caption of a motion and instead treat it in accordance with the relief it requests]; see also *Barrows v. American Motors Corp.* (1983) 144 Cal.App.3d 1, 9 [treating demurrer like motion for summary judgment due to nature of relief requested]; *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1064 ["The substance of the 'motion to quash' is what mattered, not its label"].) Thus, the Court indicated its willingness to view and evaluate the merits of Plaintiff's motion as a demurrer rather than a motion to strike.

Turning to those merits, an answer may contain a "general ... denial of material allegations of the complaint controverted by the defendant." (Code Civ. Proc., § 431.30, subd. (b)(1).) The effect of a general denial is to "put into issue the material allegations of the complaint." (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 383 (*FPI*).) The answer must also contain "[a] statement of any new matter constituting a defense." (Code Civ. Proc., § 431.30, subd. (b)(2).) A "new matter" is "any ground urged in avoidance of the complaint, i.e., some independent reason why plaintiff should be barred from recovery, even if everything alleged in the complaint was true." (*Walsh v. West Valley Mission Comm. College Dist.* (1998) 66 Cal.App.4th 1532, 1546.) An affirmative defense presents such "new matter" and must be *specifically* pleaded in the answer or evidence of such grounds will be inadmissible at trial. (*Id.*; see also *Adeventec Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627.)

Plaintiff urges that the defenses of failure to state a claim (first), waiver (twelfth), estoppel (thirteenth), unclean hands (fourth) and laches (third) are insufficiently pleaded in the Complaint because they are not pleaded with any specificity. In its opposition, Defendant insists that its

affirmative defenses are adequate because those defenses, coupled with the allegations contained in the Complaint, “clearly give Plaintiff adequate notice of Defendant’s contentions as they relate to Plaintiff’s own Complaint.” (Opp. at 5:24-26.) The Court disagrees.

Defendant notably offers no authority which counters that which provides that affirmative defenses must be *specifically* pleaded. All of the allegations in support of the first, third, fourth, twelfth and thirteenth affirmative defenses are proffered in the form of legal conclusions, rather than as facts “averred carefully and with as much detail as the facts which constitute the cause of action and alleged in the complaint.” (*FPI, supra*, 231 Cal.App.3d at 384.) As such, the Court agrees with Plaintiff that these affirmative defenses are inadequately pleaded. Defendant is granted leave to amend its answer to address this deficiency.

As for Plaintiff’s contention that the “failure to state a cause of action” and “reservation of rights” (twenty-second) defenses are not proper and thus must be stricken, she notably offers no authority in support of her contentions that these are “demurrer issues or improper placeholders.” The Court will not do Plaintiff’s work for her and thus will not grant her motion with respect to either defense on this basis.

To reiterate, despite how it is titled in the notice of motion, the Court treats the motion before it as a demurrer to the answer. In accordance with the foregoing, the demurrer is SUSTAINED IN PART and OVERRULED IN PART. The demurrer is SUSTAINED WITH 10 DAYS’ LEAVE TO AMEND as to the first, third, fourth, twelfth and thirteen affirmative defenses and otherwise OVERRULED.

